

An Act

ENROLLED HOUSE
BILL NO. 4431

By: Hilbert of the House

and

Rosino of the Senate

An Act relating to professions and occupations; amending 59 O.S. 2021, Section 353.1, as last amended by Section 5, Chapter 340, O.S.L. 2025 (59 O.S. Supp. 2025, Section 353.1), which relates to definitions within the Oklahoma Pharmacy Act; modifying references; amending 59 O.S. 2021, Section 353.1a, as amended by Section 6, Chapter 340, O.S.L. 2025 (59 O.S. Supp. 2025, Section 353.1a), which relates to prescribing authority for Advanced Practice Registered Nurse, Certified Nurse Practitioner, Clinical Nurse Specialist, Certified Midwife; modifying references; amending 59 O.S. 2021, Section 519.3, as amended by Section 4, Chapter 343, O.S.L. 2025 (59 O.S. Supp. 2025, Section 519.3), which relates to the Physician Assistant Committee; modifying procedures with respect to license applications; amending 59 O.S. 2021, Section 519.4, as amended by Section 7, Chapter 350, O.S.L. 2025 (59 O.S. Supp. 2025, Section 519.4), which relates to physician assistant licensure; modifying requirements related to jurisprudence examinations; repealing 59 O.S. 2021, Section 353.1, as last amended by Section 1, Chapter 343, O.S.L. 2025 (59 O.S. Supp. 2025, Section 353.1), which relates to a duplicate section; repealing 59 O.S. 2021, Section 353.1a, as amended by Section 2, Chapter 343, O.S.L. 2025 (59 O.S. Supp. 2025, Section 353.1a), which relates to a duplicate section; and providing an effective date.

SUBJECT: Professions and occupations

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 353.1, as last amended by Section 5, Chapter 340, O.S.L. 2025 (59 O.S. Supp. 2025, Section 353.1), is amended to read as follows:

Section 353.1. For the purposes of the Oklahoma Pharmacy Act:

1. "Accredited program" means those seminars, classes, meetings, work projects, and other educational courses approved by the State Board of Pharmacy for purposes of continuing professional education;

2. "Act" means the Oklahoma Pharmacy Act;

3. "Administer" means the direct application of a drug, whether by injection, inhalation, ingestion, or any other means, to the body of a patient;

4. "Assistant pharmacist" means any person presently licensed as an assistant pharmacist in this state by the Board pursuant to Section 353.10 of this title and for the purposes of the Oklahoma Pharmacy Act shall be considered the same as a pharmacist, except where otherwise specified;

5. "Board" or "State Board" means the State Board of Pharmacy;

6. "Certify" or "certification of a prescription" means the review of a filled prescription by a licensed pharmacist or a licensed practitioner with dispensing authority to confirm that the medication, labeling, and packaging of the filled prescription are accurate and meet all requirements prescribed by state and federal law. For the purposes of this paragraph, "licensed practitioner" shall not include optometrists with dispensing authority;

7. "Chemical" means any medicinal substance, whether simple or compound or obtained through the process of the science and art of chemistry, whether of organic or inorganic origin;

8. "Compounding" means the combining, admixing, mixing, diluting, pooling, reconstituting, or otherwise altering of a drug or bulk drug substance to create a drug. Compounding includes the preparation of drugs or devices in anticipation of prescription drug orders based on routine, regularly observed prescribing patterns;

9. "Continuing professional education" means professional, pharmaceutical education in the general areas of the socioeconomic and legal aspects of health care; the properties and actions of drugs and dosage forms; and the etiology, characteristics, and therapeutics of the diseased state;

10. "Dangerous drug", "legend drug", "prescription drug", or "Rx Only" means a drug:

- a. for human use subject to 21 U.S.C., Section 353(b)(1), or
- b. is labeled "Prescription Only", or labeled with the following statement: "Caution: Federal law restricts this drug to use by or on the order of a licensed veterinarian.";

11. "Director" means the Executive Director of the State Board of Pharmacy unless context clearly indicates otherwise;

12. "Dispense" or "dispensing" means the interpretation, evaluation, and implementation of a prescription drug order including the preparation and delivery of a drug or device to a patient or a patient's agent in a suitable container appropriately labeled for subsequent administration to, or use by, a patient. Dispense includes sell, distribute, leave with, give away, dispose of, deliver, or supply;

13. "Dispenser" means a retail pharmacy, hospital pharmacy, a group of chain pharmacies under common ownership and control that do not act as a wholesale distributor, or any other person authorized by law to dispense or administer prescription drugs, and the affiliated warehouses or distributions of such entities under common ownership and control that do not act as a wholesale distributor. For the purposes of this paragraph, dispenser does not mean a person who dispenses only products to be used in animals in accordance with 21 U.S.C., Section 360b(a)(5);

14. "Distribute" or "distribution" means the sale, purchase, trade, delivery, handling, storage, or receipt of a product, and does not include the dispensing of a product pursuant to a prescription executed in accordance with 21 U.S.C., Section 353(b)(1) or the dispensing of a product approved under 21 U.S.C., Section 360b(b); provided, taking actual physical possession of a product or title shall not be required;

15. "Doctor of Pharmacy" means a person licensed by the Board to engage in the practice of pharmacy. The terms "pharmacist", "D.Ph.", and "Doctor of Pharmacy" shall be interchangeable and shall have the same meaning wherever they appear in the Oklahoma Statutes and the rules promulgated by the Board;

16. "Drug outlet" means all manufacturers, repackagers, outsourcing facilities, wholesale distributors, third-party logistics providers, pharmacies, and all other facilities which are engaged in dispensing, delivery, distribution, or storage of dangerous drugs;

17. "Drugs" means all medicinal substances and preparations recognized by the United States Pharmacopeia and National Formulary, or any revision thereof, and all substances and preparations intended for external and/or internal use in the cure, diagnosis, mitigation, treatment, or prevention of disease in humans or animals and all substances and preparations, other than food, intended to affect the structure or any function of the body of a human or animals;

18. "Drug sample" means a unit of a prescription drug packaged under the authority and responsibility of the manufacturer that is not intended to be sold and is intended to promote the sale of the drug;

19. "Durable medical equipment" has the same meaning as provided by Section 375.2 of this title;

20. "Filled prescription" means a packaged prescription medication to which a label has been affixed which contains such information as is required by the Oklahoma Pharmacy Act;

21. "Hospital" means any institution licensed as a hospital by this state for the care and treatment of patients, or a pharmacy operated by the Oklahoma Department of Veterans Affairs;

22. "Licensed practitioner" means:

- a. an allopathic physician,
- b. an osteopathic physician,
- c. a podiatric physician,

- d. a dentist,
- e. a veterinarian,
- f. an optometrist, ~~or~~
- g. an Advanced Practice Registered Nurse, or
- h. a physician assistant

licensed to practice and authorized to prescribe dangerous drugs within the scope of practice of such practitioner;

23. "Manufacturer" or "virtual manufacturer" means with respect to a product:

- a. a person that holds an application approved under 21 U.S.C., Section 355 or a license issued under 42 U.S.C., Section 262 for such product, or if such product is not the subject of an approved application or license, the person who manufactured the product,
- b. a co-licensed partner of the person described in subparagraph a of this paragraph that obtains the product directly from a person described in this subparagraph or subparagraph a of this paragraph,
- c. an affiliate of a person described in subparagraph a or b of this paragraph who receives the product directly from a person described in this subparagraph or in subparagraph a or b of this paragraph, or
- d. a person who contracts with another to manufacture a product;

24. "Manufacturing" means the production, preparation, propagation, compounding, conversion, or processing of a device or a drug, either directly or indirectly by extraction from substances of natural origin or independently by means of chemical or biological synthesis and includes any packaging or repackaging of the substances or labeling or relabeling of its container, and the promotion and marketing of such drugs or devices. The term manufacturing also includes the preparation and promotion of

commercially available products from bulk compounds for resale by licensed pharmacies, licensed practitioners, or other persons;

25. "Medical gas" means those gases including those in liquid state upon which the manufacturer or distributor has placed one of several cautions, such as "Rx Only", in compliance with federal law;

26. "Medical gas order" means an order for medical gas issued by a licensed prescriber;

27. "Medical gas distributor" means a person licensed to distribute, transfer, wholesale, deliver, or sell medical gases on drug orders to suppliers or other entities licensed to use, administer, or distribute medical gas and may also include a patient or ultimate user;

28. "Medical gas supplier" means a person who dispenses medical gases on drug orders only to a patient or ultimate user;

29. "Medicine" means any drug or combination of drugs which has the property of curing, preventing, treating, diagnosing, or mitigating diseases, or which is used for that purpose;

30. "Nonprescription drugs" means medicines or drugs which are sold without a prescription and which are prepackaged for use by the consumer and labeled in accordance with the requirements of the statutes and regulations of this state and the federal government. Such items shall also include medical and dental supplies and bottled or nonbulk chemicals which are sold or offered for sale to the general public if such articles or preparations meet the requirements of the Federal Food, Drug, and Cosmetic Act, 21 U.S.C.A., Section 321 et seq.;

31. "Outsourcing facility" including "virtual outsourcing facility" means a facility at one geographic location or address that:

- a. is engaged in the compounding of sterile drugs,
- b. has elected to register as an outsourcing facility,
and
- c. complies with all requirements of 21 U.S.C., Section 353b;

32. "Package" means the smallest individual saleable unit of product for distribution by a manufacturer or repackager that is intended by the manufacturer for ultimate sale to the dispenser of such product. For the purposes of this paragraph, "individual saleable unit" means the smallest container of a product introduced into commerce by the manufacturer or repackager that is intended by the manufacturer or repackager for individual sale to a dispenser;

33. "Person" means an individual, partnership, limited liability company, corporation, or association, unless the context otherwise requires;

34. "Pharmacist-in-charge" or "PIC" means the pharmacist licensed in this state responsible for the management control of a pharmacy and all other aspects of the practice of pharmacy in a licensed pharmacy as provided by Section 353.18 of this title;

35. "Pharmacy" means a place regularly licensed by the State Board of Pharmacy in which prescriptions, drugs, medicines, chemicals, and poisons are compounded or dispensed or such place where pharmacists practice the profession of pharmacy, or a pharmacy operated by the Oklahoma Department of Veterans Affairs;

36. "Pharmacy technician", "technician", "Rx tech", or "tech" means a person issued a technician permit by the State Board of Pharmacy to assist the pharmacist and perform nonjudgmental, technical, manipulative, non-discretionary functions in the prescription department under the immediate and direct supervision of a pharmacist;

37. "Poison" means any substance which when introduced into the body, either directly or by absorption, produces violent, morbid, or fatal changes, or which destroys living tissue with which such substance comes into contact;

38. "Practice of pharmacy" means:

- a. the interpretation and evaluation of prescription orders,
- b. the compounding, dispensing, administering, and labeling of drugs and devices, except labeling by a manufacturer, repackager, or distributor of nonprescription drugs and commercially packaged legend drugs and devices,

- c. the participation in drug selection and drug utilization reviews,
- d. the proper and safe storage of drugs and devices and the maintenance of proper records thereof,
- e. the responsibility for advising by counseling and providing information, where professionally necessary or where regulated, of therapeutic values, content, hazards, and use of drugs and devices,
- f. the offering or performing of those acts, services, operations, or transactions necessary in the conduct, operation, management, and control of a pharmacy, or
- g. the provision of those acts or services that are necessary to provide pharmaceutical care;

39. "Preparation" means an article which may or may not contain sterile products compounded in a licensed pharmacy pursuant to the order of a licensed prescriber;

40. "Prescriber" means a person licensed in this state who is authorized to prescribe dangerous drugs within the scope of practice of the person's profession;

41. "Prescription" means and includes any order for drug or medical supplies written or signed, or transmitted by word of mouth, telephone, or other means of communication:

- a. by a licensed prescriber, including:

- (1) a Certified Nurse Practitioner, Clinical Nurse Specialist, or Certified Nurse-Midwife licensed in the state who has obtained independent prescriptive authority under Section 567.4c of Title 59 of the Oklahoma Statutes, and

- (2) a physician assistant entitled to practice without the supervision of a delegating physician under Section 519.6 of Title 59 of the Oklahoma Statutes;

- b. by a physician assistant pursuant to a practice agreement,
- c. ~~(1) under the supervision of a supervising physician,~~
by a Certified Nurse Practitioner, Clinical Nurse Specialist, or Certified Nurse-Midwife licensed in this state who has not obtained independent prescriptive authority under ~~Section 1 of this act~~ Section 567.4c of Title 59 of the Oklahoma Statutes under the supervision of a supervising physician, or

~~(2) by a Certified Nurse Practitioner, Clinical Nurse Specialist, or Certified Nurse-Midwife licensed in this state who has obtained independent prescriptive authority under Section 1 of this act, or~~
- d. by an Oklahoma licensed wholesaler or distributor as authorized in Section 353.29.1 of this title;

42. "Product" means a prescription drug in a finished dosage form for administration to a patient without substantial further manufacturing, such as capsules, tablets, and lyophilized products before reconstitution. Product does not include blood components intended for transfusion, radioactive drugs or biologics and medical gas;

43. "Repackager", including "virtual repackager", means a person who owns or operates an establishment that repacks and relabels a product or package for further sale or distribution without further transaction;

44. "Sterile drug" means a drug that is intended for parenteral administration, an ophthalmic or oral inhalation drug in aqueous format, or a drug that is required to be sterile under state and federal law;

45. "Supervising physician" means an individual holding a current license to practice as a physician from the State Board of Medical Licensure and Supervision, pursuant to the provisions of the Oklahoma Allopathic Medical and Surgical Licensure and Supervision Act, or the State Board of Osteopathic Examiners, pursuant to the provisions of the Oklahoma Osteopathic Medicine Act, who supervises a Certified Nurse Practitioner, Clinical Nurse Specialist, or

Certified Nurse-Midwife as defined in Section 567.3a of this title who has not obtained independent prescriptive authority under ~~Section 1 of this act~~ 567.4c of this title, and who is not in training as an intern, resident, or fellow. The supervising physician shall remain in compliance with the rules promulgated by the State Board of Medical Licensure and Supervision or the State Board of Osteopathic Examiners;

46. "Supportive personnel" means technicians and auxiliary supportive persons who are regularly paid employees of a pharmacy who work and perform tasks in the pharmacy as authorized by Section 353.18A of this title;

47. "Third-party logistics provider" including "virtual third-party logistics provider" means an entity that provides or coordinates warehousing, or other logistics services of a product in interstate commerce on behalf of a manufacturer, wholesale distributor, or dispenser of a product but does not take ownership of the product, nor have responsibility to direct the sale or disposition of the product. For the purposes of this paragraph, third-party logistics provider does not include shippers and the United States Postal Service;

48. "Wholesale distributor" including "virtual wholesale distributor" means a person other than a manufacturer, a manufacturer's co-licensed partner, a third-party logistics provider, or repackager engaged in wholesale distribution as defined by 21 U.S.C., Section 353(e)(4) as amended by the Drug Supply Chain Security Act;

49. "County jail" means a facility operated by a county for the physical detention and correction of persons charged with, or convicted of, criminal offenses or ordinance violations or persons found guilty of civil or criminal contempt;

50. "State correctional facility" means a facility or institution that houses a prisoner population under the jurisdiction of the Department of Corrections;

51. "Unit dose package" means a package that contains a single dose drug with the name, strength, control number, and expiration date of that drug on the label; and

52. "Unit of issue package" means a package that provides multiple doses of the same drug, but each drug is individually separated and includes the name, lot number, and expiration date.

SECTION 2. AMENDATORY 59 O.S. 2021, Section 353.1a, as amended by Section 6, Chapter 340, O.S.L. 2025 (59 O.S. Supp. 2025, Section 353.1a), is amended to read as follows:

Section 353.1a. A. Prescriptive authority for certain licensed Advanced Practice Registered Nurses:

1. Prescriptive authority shall be allowed, under a current supervision agreement with a supervising physician, for a licensed Advanced Practice Registered Nurse recognized by the Oklahoma Board of Nursing as a Certified Nurse Practitioner, Clinical Nurse Specialist, or Certified Nurse-Midwife who has not obtained independent prescriptive authority ~~under Section 1 of this act.~~ pursuant to Section 567.4c of Title 59 of the Oklahoma Statutes; and

2. Prescriptive authority shall be allowed, independent of a current supervision agreement with a supervising physician, for a licensed Advanced Practice Registered Nurse recognized by the Oklahoma Board of Nursing as a Certified Nurse Practitioner, Clinical Nurse Specialist, or Certified Nurse-Midwife who has obtained independent prescriptive authority ~~under Section 1 of this act~~ pursuant to Section 567.4c of Title 59 of the Oklahoma Statutes.

B. Prescriptive authority for physician assistants:

1. Prescriptive authority shall be allowed, pursuant to a practice agreement, for a physician assistant required to practice under supervision of a delegating physician; and

2. Prescriptive authority shall be allowed for a physician assistant not required to practice under supervision of a delegating physician.

C. ~~The~~ An Advanced Practice Registered Nurse may write or sign, or transmit by word of mouth, telephone, or other means of communication an order for drugs or medical supplies that is intended to be filled, compounded, or dispensed by a pharmacist. The supervising physician, if applicable, and the prescribing Advanced Practice Registered Nurse shall be identified at the time of origination of the prescription and the name of the prescribing

Advanced Practice Registered Nurse shall be printed on the prescription label.

~~C.~~ D. Pharmacists may dispense prescriptions for non-controlled prescription drugs authorized by an Advanced Practice Registered Nurse or physician assistant, not located in this state, provided that they are licensed in the state in which they are actively prescribing.

~~D.~~ ~~1.~~ E. Pharmacists may only dispense prescriptions for controlled dangerous substances prescribed by:

1. ~~an~~ An Advanced Practice Registered Nurse licensed in this state who meets the criteria in paragraph 1 or 2 of subsection A of this section.

2. ~~Pharmacists may only dispense prescriptions for controlled dangerous substances prescribed by a~~ A physician assistant licensed in this state pursuant to a practice agreement.

F. Pharmacies and pharmacists may rely on the Board of Medical Licensure and Supervision list of physician assistants who have reported completion of six thousand two hundred forty (6,240) or more postgraduate clinical experience hours and are thus entitled to prescribe without a practice agreement.

SECTION 3. AMENDATORY 59 O.S. 2021, Section 519.3, as amended by Section 4, Chapter 343, O.S.L. 2025 (59 O.S. Supp. 2025, Section 519.3), is amended to read as follows:

Section 519.3. A. There is hereby created the Physician Assistant Committee, which shall be composed of nine (9) members. Five members of the Committee shall be physician assistants appointed by the State Board of Medical Licensure and Supervision from a list of qualified individuals submitted by the Oklahoma Academy of Physician Assistants. One member shall be a physician appointed by the Board from its membership. One member shall be a physician appointed by the Board from a list of qualified individuals submitted by the Oklahoma State Medical Association and who is not a member of the Board. One member shall be a physician appointed by the State Board of Osteopathic Examiners from its membership. One member shall be a physician appointed by the State Board of Osteopathic Examiners from a list of qualified individuals submitted by the Oklahoma Osteopathic Association and who is not a member of said board.

B. The term of office for each member of the Committee shall be five (5) years.

C. The Committee shall meet at least quarterly. At the initial meeting of each calendar year, the Committee members shall elect a chair from the physician assistant members. The chair or his or her designee shall represent the Committee at all meetings of the Board. Five members shall constitute a quorum for the purpose of conducting official business of the Committee.

D. The State Board of Medical Licensure and Supervision is hereby granted the power and authority to promulgate rules, which are in accordance with the provisions of Section 519.1 et seq. of this title, governing the requirements for licensure as a physician assistant, as well as to establish standards for training, approve institutions for training, and regulate the standards of practice of a physician assistant after licensure, including the power of revocation of a license.

E. The State Board of Medical Licensure and Supervision is hereby granted the power and authority to investigate all complaints, hold hearings, subpoena witnesses and initiate prosecution concerning violations of Section 519.1 et seq. of this title. When such complaints involve physicians licensed by the State Board of Osteopathic Examiners, the State Board of Osteopathic Examiners shall be officially notified of such complaints.

F. 1. The Committee shall advise the Board on all matters pertaining to the practice of physician assistants.

2. The Committee shall review and make recommendations to the Board for approval of or other action on all applications for licensure as a physician assistant and all applications to practice ~~which shall be approved by the Board. When considering applicants for licensure, to establish standards of training or approve institutions for training, the Committee shall include the Director, or designee, of all Physician Assistant educational programs conducted by institutions of higher education in the state as members.~~

3. The Committee shall assist and advise the Board in all hearings involving physician assistants who are deemed to be in violation of Section 519.1 et seq. of this title or the rules of the Board.

SECTION 4. AMENDATORY 59 O.S. 2021, Section 519.4, as amended by Section 7, Chapter 350, O.S.L. 2025 (59 O.S. Supp. 2025, Section 519.4), is amended to read as follows:

Section 519.4. To be eligible for licensure as a physician assistant pursuant to the provisions of Section 519.1 et seq. of this title an applicant shall:

1. Have graduated from an accredited physician assistant program recognized by the State Board of Medical Licensure and Supervision;

2. Successfully pass an examination for physician assistants recognized by the Board; ~~and~~

3. Obtain a national criminal history background check; and

4. Successfully complete the jurisprudence examination of the Board, in accordance with rules promulgated by the Board, upon initial licensure or upon application to reenter practice.

SECTION 5. REPEALER 59 O.S. 2021, Section 353.1, as last amended by Section 1, Chapter 343, O.S.L. 2025 (59 O.S. Supp. 2025, Section 353.1), is hereby repealed.

SECTION 6. REPEALER 59 O.S. 2021, Section 353.1a, as amended by Section 2, Chapter 343, O.S.L. 2025 (59 O.S. Supp. 2025, Section 353.1a), is hereby repealed.

SECTION 7. This act shall become effective November 1, 2026.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____